

IAS PRELIMS/MAINS



SCIENCE & TECHNOLOGY



A COMPREHENSIVE COVERAGE

MODULE - 41

INTELLECTUAL PROPERTY RIGHTS (IPR) - 1

INTELLECTUAL PROPERTY RIGHTS (IPR)

- IPR is a general term **covering Patents, Copyright, Trademark & Service mark, Industrial designs, Geographical Indications, protection of layout design of integrated circuits and protection of undisclosed information** (trade secrets).
- IPRs refer to the legal ownership by a person or business of an invention / discovery attached to particular product or processes which **protects the owner against unauthorized copying or imitation.**



GENERAL TYPES OF IP INCLUDE

1 COPYRIGHT

- This **protects written or published works such as books, songs, films, web content and artistic works.**
- Copyright is a **right given by the law to creators** of literary, dramatic, musical and artistic works and producers of films and sound recordings.
- It is a bundle of rights including rights of reproduction, communication to the public, adaptation and translation of the work.
- The main social purpose of protection of copyright and related rights is to encourage and reward creative work.
- The rights of authors of literary and artistic works (such as books and other writings, musical compositions, paintings, sculpture, computer programs and films) are **protected by copyright, for a minimum period of 50 years after the death of the author.**



GENERAL TYPES OF IP INCLUDE

1 COPYRIGHT

REQUIREMENTS

- Must be an **original work**.
- Expressed in a **tangible medium**.

RIGHTS TO OWNER

- **Making copies of the work**
- **Distributing the copies**
- **Display the work publicly**
- **Make “derivative works”**
- **Making modifications, other new uses of a work, or translating to another media.**
- The **main social purpose** of protection of copyright and related rights is **to encourage and reward creative work.**
- Ministry administering the IPR: **Ministry of Human Resource Development.**
- Concerned IP Act: **The Copyright Act, 1957 (as amended in 2012).**

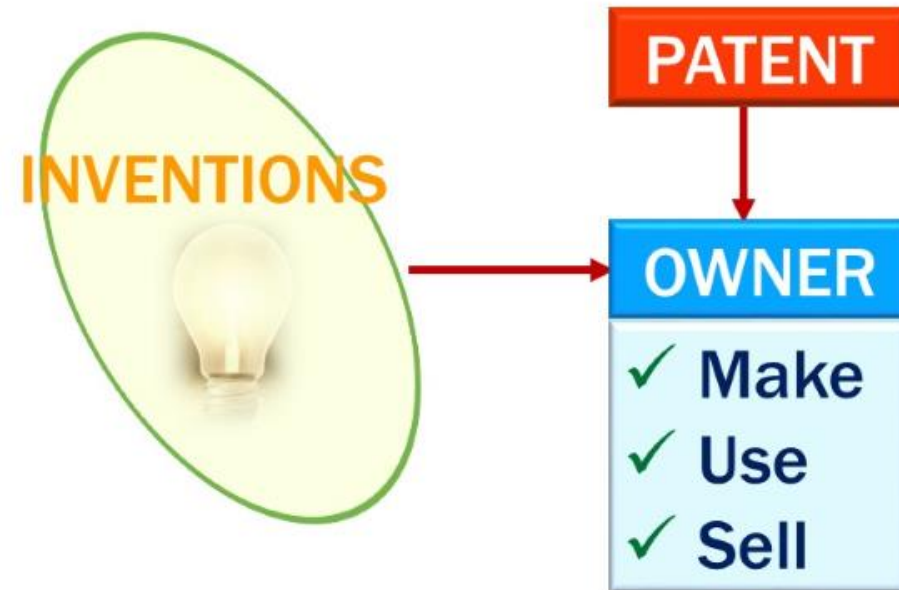


GENERAL TYPES OF IP INCLUDE

2

PATENTS

1. A **patent** is granted for an invention which is **a new product or process**, that meets the conditions of novelty, non-obviousness and industrial use.
2. A patent describes an invention for which the **inventor claims the exclusive right to make, use and sell** an invention for a specific period.
 - ✓ Invention is a **new solution to “technical” problem.** (product, process and new use)



REQUIREMENTS

- **Useful**
- **Novel**
- **Not Obvious**
- failure to meet any of these criteria will prevent a patent from being issued.
- A **patent is granted for a period of 20 years from the filing date of patent application**
- The **Indian Patent Office** is administered by the **Controller General of Patents, Designs and Trademarks**.
- Ministry administering the IPR: Department of Industrial Policy and Promotion, **Ministry of Commerce and Industry**.
- Concerned IP Act: **The Patents Act, 1970. (As amended in 2005).**



**Controller General of Patents,
Designs & Trade Marks**

Office of the Registrar of Trade Marks

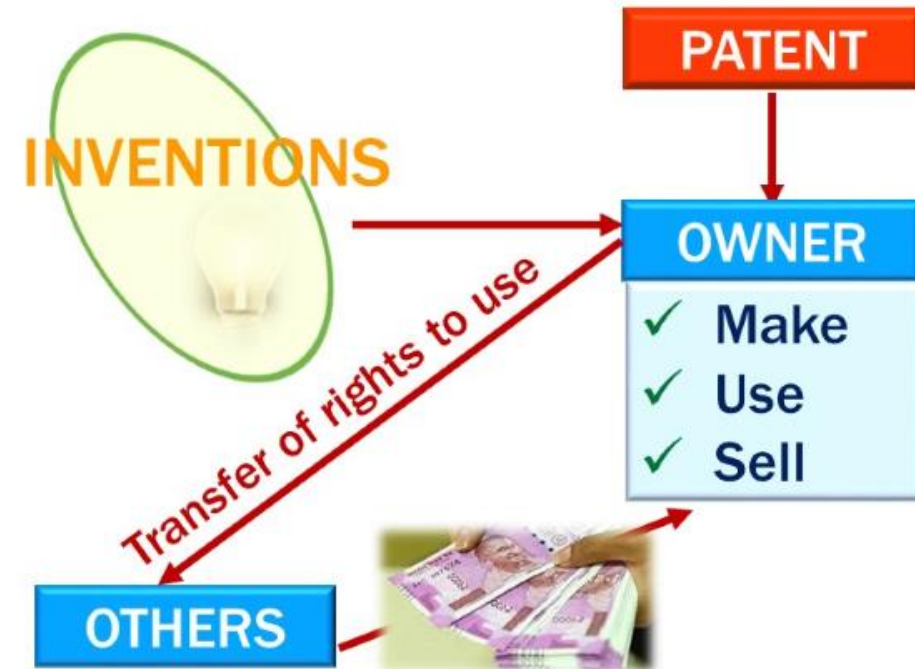


सत्यमेव जयते

Department of Commerce
Ministry of Commerce & Industry
Government of India

REQUIREMENTS

- **India's patent law operates under the 'first to file' principle** - that is, if two people apply for a patent on an identical invention, the first one to file the application will be awarded the patent.
- This **IPR gives to the holder the exclusive right of exploitation** and enables them to exploit the invention by manufacturing, using, or selling products or processes incorporating the technology covered by the patent.
- The **owner may also allow the invention to be exploited by others** over a set period of time, in return **for fair remuneration** to compensate them for the intellectual and material effort involved in its conception and production.



USE OF PATENTS

- **Rights of the Patent Owner** can make, use or sell the patented invention and prevent others to do so.
- **Owner can License the rights to someone else** can make, use or sell the patented invention and prevent others to do so (ownership does not change).
- **Owner can assign the rights of invention to someone else**
- Patentable Subject Matter
- **What can be patented?** (Section 2(1) (i))
 - ✓ Machines
 - ✓ **Articles of Manufacture**
 - ✓ Compositions of Matter
 - ✓ Plants (asexually reproducing).
 - ✓ **Designs.**
 - ✓ **Processes** – Method of purifying a protein or nucleic acid; method of screening for useful drugs; business methods.
 - ✓ Improvements on the above.

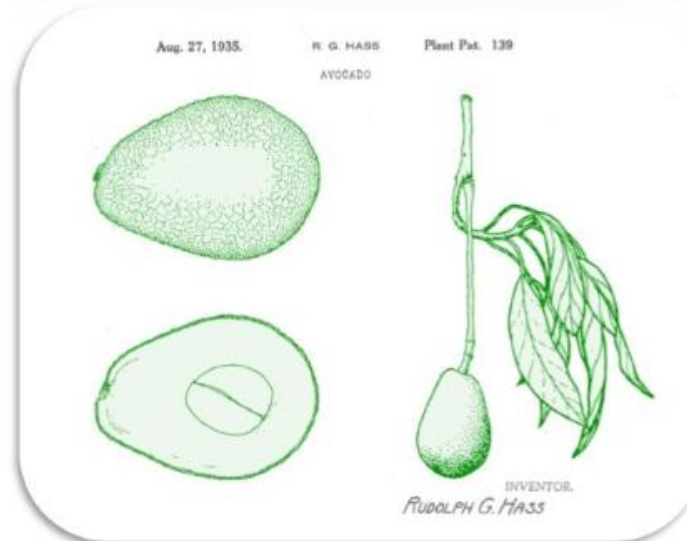


UNPATENTABLE MATTER

- Laws of Nature, discovery, mathematical method or scientific theory.
- Naturally occurring compounds (i.e., as they exist in nature)
- **Abstract ideas**, Mere presentation of information.
- **Technology already known.**
- A literary, dramatic, musical or artistic work or any other aesthetic creation.
- **A scheme**, rule or method for performing any mental act, playing a game or a program for a computer.

TYPES OF PATENTS

- **Utility Patents:** Machines, compositions of matter, processes and Biotech patents.
- **Design patents:** Ornamental design, layout of an article, style of a chair.
- **Plant patents:** asexually reproducing plants. Sexually reproducing plants are covered under the PPV Act.



GENERAL TYPES OF IP INCLUDE

3

INDUSTRIAL DESIGNS

- A design refers to the features of shape, configuration, pattern, ornamentation, composition of color of any article.
- Industrial Design is **ornamental or aesthetic** aspect of a useful article of industry. The aspect that gives **special appearance to a product** of industry.
- This **IPR protects designs, such as drawings or computer models**.
- Every design must pass the test of novelty. A registered design is valid for 10 years and can be further extended by 5 years.
- Concerned Act: **Designs Act 2000**
- Ministry administering the IPR: Department of Industrial Policy and Promotion, **Ministry of Commerce and Industry**.
- They **give owners exclusive rights** to reproduce their work, publicly display or perform their work, and create derivative works. Moreover, **owners are given economic rights to financially benefit from their work** and prohibit others from doing so without their permission.

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